

Court No. - 39

Case :- WRIT - C No. - 33918 of 2014

Petitioner :- M/S Siddheshwari Industries (Pvt.) Limited

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Nripendra Mishra

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Connect and list with Writ Petition (C) No. 51884 of 2009.

Heard learned counsel for the petitioner as well as Shri A.K. Tiwari, holding brief of Sri Nripendra Mishra, on behalf of respondent nos. 3 & 4.

By means of this writ petition, the petitioner has prayed for quashing the undated demand notice issued by the respondent No. 2, for additional security.

Learned counsel for the petitioner submits that additional security has been asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioner further submits that similar writ petition has been entertained and interim orders have been passed by this Court.

Reference has been made to the order dated 7.10.2009 in Writ Petition No. 51844 of 2009(M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others).

Learned counsel for the petitioners also submits that in several matters identical questions are involved.

In view of the interim order as already granted in writ petition No. 51844 of 2009 as referred above it is provided, without prejudice to the right and contention of the parties, until further orders of this Court, the respondents are restrained from demanding additional security from the petitioner.

List the case along with other connected matters on 21st July, 2014.

Order Date :- 4.7.2014

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Counsel for Respondent :- C.S.C.,A.N. Singh,Nripendra Mishra

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Learned counsel appearing for the respondent-Corporation prays for and is allowed three weeks' further time to file counter affidavit. Rejoinder affidavit, if any, may be filed within two weeks thereafter.

List after expiry of the aforesaid period.

Order Date :- 18.7.2014

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Court No. - 21

Case :- WRIT - C No. - 33918 of 2014

Petitioner :- M/S Siddheshwari Industries Pvt. Limited

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Nripendra Mishra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

As prayed, list in the month of July, 2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 19.5.2023

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Court No. - 3

Case :- WRIT - C No. - 33918 of 2014

Petitioner :- M/S Siddheshwari Industries Pvt. Limited

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- A.N. Singh, Ajay Singh, Nripendra Mishra

Hon'ble Shekhar B. Saraf, J.

Hon'ble Praveen Kumar Giri, J.

1. The challenge advanced is to the demand notice dated April 2, 2014 issued by respondent no.2 imposing additional security on industrial consumers having load of more than 45 kilowatt and the bill issued to the petitioner applying the said tariff.

2. Sri Bidhan Chandra Rai, learned counsel for the petitioner very fairly states that the issue stands decided against the petitioner by this Court in the case of **M/S Dev Prayag Paper Mill (Pvt.) vs State Of U.P. and 3 others** reported in **2017 (3) ALJ 497**.

3. Accordingly and for the reasons given in the said judgement, the instant petition is also dismissed.

Order Date :- 28.7.2025

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(Praveen Kumar Giri J.) (Shekhar B. Saraf, J.)